

****Initiative Recommendation 01/2023 of December 11, 2023 – Updated on April 26, 2024****

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Data Protection Authority

****Initiative Recommendation 01/2023 concerning the****

****communication of copies of the voter registers****

****to political parties and candidates for the purpose of****

****conducting electoral propaganda actions by mail and reference to the new European regulation****

****on transparency and targeting of political advertising****

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The Knowledge Center of the Data Protection Authority (hereinafter "the Authority"), Present: Ms. Juline Deschuyteneer, Ms. Cédrine Morlière, Ms. Nathalie Ragheno, and Ms. Griet Verhenneman, and Mr. Bart Preneel;

Considering the law of December 3, 2017 establishing the Data Protection Authority, particularly Articles 23 and 26 (hereinafter "LCA");

Considering Article 25, paragraph 3, of the LCA, according to which decisions of the Knowledge Center are adopted by a majority of votes;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter "GDPR");

Considering the law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (hereinafter "LTD");

Has issued, on December 11, 2023, the following recommendation, republished and updated on April 26, 2024;

****Opinion No. 160/2023 of December 11, 2023****

****Recommendations of the Knowledge Center regarding:****

- the communication of copies of the voter registers to political parties and candidates for the purpose of conducting electoral propaganda actions by mail (cons. 29 and following).
- the implementation of sufficient technical and organizational measures to secure the exchange of data from the electoral lists, notably user management and access to the digital space using a strong authentication method (cons. 21 to 24 and 25 to 27);
- the establishment of safeguards when issuing the voter registers to political groups and candidates: right of opposition and information (cons. 51-55);
- the deletion of certain data (date of birth; gender; nationality) in the absence of duly justified justification in the applicable legislation, where appropriate (cons. 59-75).

The Knowledge Center reminds that in the absence of specifics in the legislation governing the communication of electoral lists for the purpose of targeted electoral propaganda by mail, it is the responsibility of the data controllers of these lists to ensure that appropriate safeguards are implemented. They will be required to demonstrate their best efforts in this regard.

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The opinion also contains practical recommendations regarding the documents to be produced and the blurring of data during proxy voting (cons. 9 and following).

This recommendation is republished and updated in light of the following new elements:

- Adoption of the European regulation on transparency and targeting of online political advertising (cons. 9-10 of this recommendation);
- Adoption at the end of 2023 of a Decree amending the decree organizing local and provincial elections of July 8, 2011 (Flemish Region) (cons. 37 and 41 of this recommendation).

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1. Introduction

01. The Authority received in October 2023 a request for an opinion regarding a draft order from the Walloon Government setting the modalities for certain electoral operations and delegating powers to the Minister of Local Authorities concerning the organization of local elections¹. This draft implements the decree of June 1, 2023, amending the Code of Local Democracy and Decentralization regarding municipal and provincial elections.

02. During the examination of the decree of June 1, 2023, the Authority made several remarks concerning the provision of copies of the electoral registers to political parties and candidates². In the explanatory memorandum of the aforementioned decree, the legislator considers that the recommendations of the Authority raise questions³. In order to address the expressed needs for clarification, the Authority has synthesized and clarified its previous recommendations regarding the communication of copies of the voter registers to political parties and candidates for the purpose of conducting electoral propaganda actions by mail.

03. In order to ensure the best possible readability of its recommendations, the Authority republishes this recommendation separately and updates it following the adoption of the Regulation of the European Parliament and of the Council on the transparency and targeting of political advertising in

March 2024.

2. State of the current law – rationale (ratio legis) for the provision of electoral lists to political parties and candidates

04. Based on the various electoral laws of our country⁵, the voter registers constitute a source of data that political parties and candidates can use to conduct electoral propaganda actions.

1 The Authority expressed its opinion on this draft order in opinion no. 160/2023 of December 11, 2023.

2 See in this regard opinion no. 164/2022 of July 19, 2022, cons. 33 to 44. The Authority also addressed this practice in opinion no. 209/2022 of September 9, 2022, cons. 6 to 20 and opinion no. 84/2023, cons. 18 to 26.

3 The legislator considers, among other things, that: the distribution of "every mailbox" mail will not allow political parties and candidates to campaign effectively; the reasoning of the Authority undermines the principle of equality among candidates; the Authority advocates the use of sophisticated voter profiling techniques; the Authority's reasoning that sensitive data can be inferred from the voter registers is disproportionate; etc. See in this regard the draft decree amending the Code of Local Democracy and Decentralization regarding municipal and provincial elections, explanatory memorandum, Doc., Parl., 2022-2023, no. 1270, pp. 29 to 32.

4 Regulation of the European Parliament and of the Council on the transparency and targeting of political advertising, available at

<https://data.consilium.europa.eu/doc/document/PE-90-2023-INIT/fr/pdf>

5 The Electoral Code (federal elections), the New Brussels Municipal Electoral Code (Brussels-Capital Region), the Code of Local Democracy and Decentralization (Walloon Region), and the Decree on the organization of local and provincial elections (Flemish Region).

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The issuance of copies of the electoral lists to political parties and candidates is governed by various legislations in this area. Indeed, individuals possessing the lists may use them solely for electoral purposes, during the period between the date of issuance of the register and the date of the election⁶ and may not disclose them to third parties under penalty of sanctions.

05. First, the issuance of electoral lists aims to enable candidates to approach voters and present their program as part of their electoral campaigns. The processing of voter data by candidates and political parties for the purpose of communicating their program during electoral campaigns is a legitimate purpose permitted by electoral laws.

06. Second, electoral legislations aim to treat all candidates equally⁷ by providing them access to the same source of information (electoral lists) during the electoral period.

07. Third, the provision of electoral lists and their use by political parties and candidates offer guarantees to citizens. This source of data is governed by sufficiently clear legislations, which explicitly establish who has the right to access it and for what purposes, the categories of data processed, as well as the maximum duration of retention. Furthermore, electoral standards limit the processing of this data to what is necessary for mobilizing the electorate, with a clear prohibition accompanied by appropriate sanctions against using it for any other purpose. The processing for electoral propaganda purposes is therefore predictable.

08. In the aforementioned legislations, as long as they are respected, citizens receiving paper advertising mail have in principle the assurance that their personal data has been obtained from a lawful and known source (namely, the voter register).

09. Conversely, the Authority questions whether electoral propaganda actions based on sophisticated online profiling techniques of voters could potentially be more intrusive to the rights and freedoms of citizens than the traditional use of electoral registers, given the lack of transparency regarding the sources of the processed data. The Authority refers to the forthcoming European regulation in this area⁸, applicable to advertising of a political nature.

6 However, there is an exception in the context of elections for the House of Representatives. Article 17 of the Electoral Code provides that "copies of the electoral lists may only be used for electoral purposes, including outside the period between the date of issuance of the list and the date of the election."

7 This principle of equality among candidates is a fundamental principle recognized by the European Commission for Democracy through Law (Venice Commission), "Code of Good Practice in Electoral Matters," guidelines and explanatory report, opinion No. 190/2002, available at [https://www.venice.coe.int/webforms/documents/default.aspx?pdffile=CDL-AD\(2002\)023rev2-cor-f](https://www.venice.coe.int/webforms/documents/default.aspx?pdffile=CDL-AD(2002)023rev2-cor-f), p.

7. The Commission states that "equality of opportunity must be ensured between parties and candidates. It implies the neutrality of public authorities."

8 Update of the recommendation of December 11, 2023: The new regulation on transparency and targeting of political advertising was adopted by the European Parliament in February 2024 and by the European Council in March 2024. Most provisions of this regulation will begin to apply 18 months after the regulation comes into force, that is, in the autumn of 2025. For more information, see the press release.

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policy when it is disseminated within the Union⁹. The Authority notes in this regard that the use of digital technologies during electoral campaigns generally relies on predictive tools and allows reaching voters with highly personalized messages – particularly on social media platforms – based on personal interests, values, or lifestyle habits¹⁰. Thus, the European Parliament announced on November 7, 2023, the conclusion of an agreement on future European rules aimed at making online electoral campaigns more transparent: "Under the agreement, only personal data explicitly provided for the purpose of online political advertising and collected directly from the subject may be used by providers to target users. Political advertisements based on profiling using specific categories of personal data (for example, ethnicity, religion, sexual orientation) will also be prohibited"¹¹

10. In this context, the Authority emphasizes that it is expressing itself in this recommendation solely on the communication of copies of the voter registers for the purpose of conducting electoral propaganda actions via ordinary mail, without commenting at this stage on the future European rules regarding electoral advertising and profiling, which will be regulated by future European legislation, representing the best practice to be observed from now on¹². The Authority also does not express itself on other data collection practices for political actions (such as direct data collection for petitions), or regarding the legal framework related to sending electoral advertising by email, the current rules of which have been recalled by the Authority in its note of March 2024 on data processing in the context of the

press release from the Council of the European Union, "The EU introduces new rules on transparency and targeting of political advertising," March 11, 2024, available at <https://www.consilium.europa.eu/fr/press/press-releases/2024/03/11/eu-introduces-new-rules-on-transparency-and-targeting-of-political-advertising/>

9 Article 2 of the Regulation of the European Parliament and of the Council on the transparency and targeting of political advertising provides that:

"1. This regulation applies to political advertising when it is disseminated within the Union, is made public in one or more Member States, addresses citizens of the Union, regardless of the location of the provider of political advertising services or the residence or establishment of the sponsor, and regardless of the means used.

2. This regulation does not affect the content of political advertising nor the Union rules or national rules governing aspects of political advertising other than those covered by this regulation, including rules relating to the organization, financing, and conduct of political campaigns, rules relating to the general prohibition or limitation of political advertising during specified periods and, where applicable, rules relating to electoral periods."

10 For more information on this subject, see the publication of the Luxembourg data protection

authority, the National Commission for Data Protection, "Electoral Campaigns in Compliance with Personal Data Protection," February 8, 2023, available at <https://cnpd.public.lu/content/dam/cnpd/fr/dossiers-thematiques/campagnes-electorales/lignes-directrices-les-campagnes-lectorales-dans-le-respect-de-la-protection-des-donnees-personnelles-022023.pdf>, p. 3.

11 Press release from the European Parliament, "Political Advertising: Agreement on New Measures to Combat Abuses," November 7, 2023, available at <https://www.europarl.europa.eu/news/fr/press-room/20230626IPR00819/publicite-politique-accord-sur-de-nouvelles-mesures-de-lutte-contre-les-abus>

12 For more information on the Regulation, see the press release from the European Parliament, "Parliament Adopts New Transparency Rules for Political Advertising," February 27, 2024, available at <https://www.europarl.europa.eu/news/fr/press-room/20240223IPR18071/le-pe-adopte-de-nouvelles-regles-de-transparence-pour-la-publicite-politique>

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Elections¹³. In response to the remarks and questions raised by the legislator, the Authority focuses on the risks associated with the provision of electoral lists to political parties and candidates concerning privacy and rights and freedoms, with particular attention given to the risks related to the use of these lists for targeted advertising.

3. Risks Associated with the Provision of Electoral Lists to Political Parties and Candidates – Specific Risks Related to the Use of These Lists for Targeted Advertising

11. The Authority has already expressed its views several times on the risks associated with the provision of electoral lists¹⁴:

12. First, the provision of copies carries risks of dissemination, illegitimate use, abuse, or diversion of purpose of the personal data contained therein, in the absence of adequate precautions.

13. Second, such processing of personal data constitutes a significant interference with the rights and freedoms of the individuals concerned due to its scale and because of the sensitive personal data that may be inferred (see below the recommendation to limit the processing of the data "name" which allows for the inference of data related to ethnic origin, and the reference to a similar recommendation expressed by the French Data Protection Authority¹⁵).

14. Third, when these lists are used for targeted electoral advertising based on specific parameters (e.g., age, gender, nationality), it is necessary to take into account the specific risks related to targeted electoral advertising.

15. Regarding targeting, it emerges from the work of the Council of Europe that "mass profiling of the electorate and the dissemination of micro-targeted messages to increasingly narrow categories of voters can have effects such as the creation of filter bubbles or echo chambers, discrimination against certain voters, and deprivation of the right to vote, possible deterrent effects on the exercise of political participation, increased polarization, and weakening of debate."

¹³ See in this regard the Authority's note titled "Processing of Personal Data for the Purposes of Personalized Electoral Propaganda and Respect for Citizens' Privacy: Fundamental Principles," available at <https://www.autoriteprotectiondonnees.be/publications/note-sur-le-traitement-des-donnees-dans-le-cadre-des-elections.pdf>, pp. 18 and following.

¹⁴ See in this regard the following opinions: opinion No. 164/2022 of July 19, 2022; opinion No. 209/2022 of September 9, 2022; opinion No. 84/2023 of April 27, 2023.

¹⁵ See in this sense the cons. 73 of this opinion.

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rigorous democratic processes and a weakening of the integrity of elections. This implies that the availability of electoral lists for targeted advertising purposes may have an impact in terms of risks to the rights and freedoms of voters. Regarding the impact on privacy/data processing, it is necessary to avoid excessive profiling of citizens that would be disproportionate to the electoral purpose. The EDPB

also warns against the extension of data processing techniques for political purposes, "which poses serious risks, not only to the rights to privacy and data protection but also to trust in the integrity of the democratic process."

4. Balancing Interests

16. In light of these considerations, the Authority has already expressed the opinion that it is necessary to analyze whether it is still appropriate to maintain a system for making electoral lists available for targeted advertising purposes. Targeted electoral advertising allows political actors to send messages to citizens to inform them in the hope of favorably influencing the outcome of the political party or its candidates on election day, if necessary by focusing their electoral campaign on certain segments of the population.

17. It is up to the legislator to determine to what extent paper electoral advertising should be targeted or not, and whether it is essential or not in a democracy to adapt political communication to a specific target audience, considering the risks of using such lists from the perspective of personal data protection. It is necessary to balance the pursued objectives and the risks generated by this data processing.

18. When drafting legislation organizing the communication of electoral lists for the purposes of targeted electoral advertising, it is recommended to demonstrate, in the explanatory memorandum, using factual and objective evidence (e.g., reference to relevant analyses), the reasons why other less intrusive measures (non-targeted) are not sufficient to achieve the desired objective.

19. For example, the University of Namur highlights in an article analyzing declining electoral participation, "one cannot convince an 18-year-old first-time voter (who cares about the climate future) in the same way as a person of...

16 Guidelines on the protection of individuals with regard to the processing of personal data in the context of political campaigns by the Advisory Committee of the Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data (Convention 108), available at <https://rm.coe.int/lignes-directrices-protection-des-donnees-et-campagnes-politiques/1680a5afdd>, p. 11.

17 See in this regard the Statement 2/2019 of March 13, 2019, by the European Data Protection Board on the use of personal data in the context of political campaigns, available at https://edpb.europa.eu/our-work-tools/our-documents/statements/statement-22019-use-personal-data-course-political_fr

18 See in this sense Opinion No. 164/2022 of July 19, 2022, cons. 37; Opinion No. 209/2022 of September 9, 2022, cons. 20; Opinion No. 84/2023 of April 27, 2023, cons. 22.

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45 years active (who cares about their pension), than a person in a retirement home (who cares about healthcare)¹⁹

20. Conversely, as previously indicated, extensive use of profiling risks depriving voters, due to their personal characteristics, of the messages from certain political parties and candidates, and/or obscuring the societal project promoted by either party. This is a debate not directly related to the protection of personal data/privacy that the Authority is not tasked to resolve.

21. If the necessity of processing is demonstrated, it must still be established that there is a fair balance between the various interests at stake and the rights and freedoms of the individuals (concerned). Thus, for example, from the perspective of the right to information, if candidates and parties wish to safeguard against any impact on the freedoms of the contacted individuals, it is their responsibility to assess on a case-by-case basis, depending on the targeting parameters used, the modalities of delivery and access to their entire program. The impact on rights and freedoms will potentially be limited if the targeted mailings constitute a supplement to the general information available to all regarding the entire electoral program, delivered in the same manner at the same time. The Authority cannot, of course, prescribe one form of communication or another. It will be up to the data controllers to determine, notably based on the target audience, the modalities of delivery of their

entire program. If necessary, comparative studies of the modes of communication of political programs to the population would benefit from being conducted, in order to determine the proportionality of the modes of communication (named or not) and modes of processing (targeted or not) of the personal data of voters.

22. In implementing electoral legislation, it is up to the parties and candidates – data controllers – to determine to what extent the realization of effective communication by political groups involves the transmission of targeted messages to voters.

23. If the legislator considers that the dissemination of voter lists to political parties and candidates is necessary and proportionate in order to effectively conduct electoral propaganda actions, it is essential to provide for the establishment of safeguards, recommended below. As previously indicated in its opinions²⁰, the Authority believes that in the absence of the adoption of these safeguards or limitations on the data transmitted, the availability of voter lists for electoral propaganda purposes would be disproportionate from the perspective of the protection of personal data and privacy.

19 UNamur Newsroom, “Declining Electoral Participation: Are Belgians Boycotting Elections,” October 31, 2023), available at

<https://newsroom.unamur.be/fr/actualites/politique-participation-electorale-en-declin-episode-2>, consulted on October 31, 2023. See also the study conducted by ULB/VUB “A Democracy Without Voters?”, October 13, 2021, available at

https://www.itsme-id.com/files/rapport_abstention_electorale.pdf, consulted on November 22, 2023.

20 See in this sense opinion no. 209/2022 of September 9, 2022, cons. 11; opinion no. 84/2023 of April 27, 2023, cons. 22.

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5. Adoption of Safeguards

24. In its previous opinion²¹, the Authority lists, non-exhaustively, several safeguards to be implemented when issuing voter registers to political groups and candidates:

Specific Right to Object and Information

25. The use of voter lists by candidates in elections is a possibility governed by law – in other words, processing is not a legal obligation for a candidate in an election within the meaning of Article 6(1)(c) of the GDPR.

26. However, the processing of personal data from voter lists is permitted insofar as this processing is necessary for the legitimate interests pursued by the data controller²². In this case, political parties and candidates have a legitimate interest in communicating their political program to voters. Nevertheless, in the event of sending political solicitations by postal mail based on this legitimate interest, the GDPR grants the data subjects a right to object as per Article 21(2) of the GDPR (“opt-out”) at any time. This provision also specifies that “at the latest at the time of the first communication with the data subject, this right to object is explicitly brought to the attention of the data subject and is presented clearly and separately from any other information.”

27. The right to object must be accompanied by adequate transparency measures²³. Thus, the Authority recommends that during communications between political actors and voters, explicit information regarding this right to object, its modalities, and the means by which it can be exercised should be indicated. Furthermore, the exercise of the right to object must be simple and effective, and the tool must be easily accessible.

28. In a previous opinion²⁴, the Authority emphasized the importance of developing a “prior” right to object, which would ensure the full effectiveness required for the right to object and facilitate the exercise of this right. It is important to allow voters to act “at the source” and to establish the possibility for citizens to request, from the municipal administration, the removal of their name from copies of voter lists communicated for the purposes of electoral propaganda actions. The Authority recommends that legislators take this remark into account in any future legislation organizing the communication of electoral lists.

29. When mailings are prepared based on data not collected directly from the data subjects, the Authority reminds that, under

21 See in this regard, opinion No. 209/2022 of September 9, 2022, para. 20.

22 Article 6(1)(f) of the GDPR provides that "the processing of personal data is permitted if it is necessary for the purposes of the legitimate interests pursued by the data controller."

23 This is evident from Article 21(4) of the GDPR.

24 Opinion No. 209/2022 of September 9, 2022, para. 44.

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The information obligation arising from Article 14 of the GDPR requires political parties to provide, at the latest at the time of the first communication, the following information²⁵:

- The identity and contact details of the data controller (the political party or candidate);
- The source of the processed data (the electoral rolls from which this data was collected);
- The purposes of the processing for which the personal data is intended as well as the legal basis for the processing (political campaigning in the context of the election and the legitimate interest of the controller);
- The categories of personal data concerned;
- The duration of data retention;
- The existence and modalities of citizens' rights regarding data protection (their right of access to data, their right to rectification and erasure of data, their right to object to the processing of their data, and their right to lodge a complaint with the Authority).

Clarification of the purpose "electoral purposes"

30. The purpose of the processing must be determined clearly and precisely to allow the concerned individuals to have a predictable understanding of the processing of their data. Some electoral legislations state that "the issuance of copies may only be used for electoral purposes"²⁶. The notion of "electoral purposes" does not allow voters to understand the concrete reason why the voter registers may be made available to political parties and candidates in the context of elections. This raises questions regarding the predictability criteria of the norms governing the processing of personal data. Therefore, the Authority invites legislators to specify that the issuance of copies of the registers aims to enable the execution of electoral campaigning actions.

Limitation of the duration for which the data may be used for these purposes in compliance with the principle of data retention limitation

31. In the context of the elections for the House of Representatives, copies of the voter registers may be used for electoral purposes outside the election period. As explained in its previous opinion regarding the Federal Electoral Code²⁷, unless proven otherwise, it does not appear relevant or

25 In this regard, see the position of the CNIL which believes that this information must be provided to the concerned individuals in case of using the electoral rolls for sending mail, available at <https://www.cnil.fr/fr/la-liste-electorale>. The CNPD also reminds that political parties must provide this information, at the latest at the time of the first communication, in its publication "Electoral campaigns in compliance with the protection of personal data," February 8, 2023, available at <https://cnpd.public.lu/content/dam/cnpd/fr/dossiers-thematiques/campagnes-electorales/lignes-directrices-les-campagnes-electorales-dans-le-respect-de-la-protection-des-donnees-personnelles-022023.pdf>, p. 13.

26 See in this regard Article 13 of the Ordinance on the New Brussels Electoral Code and Article 17 of the Electoral Code.

27 See in this regard Opinion No. 209/2022 of September 9, 2022, cons. 35.

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It is appropriate that this register can be used outside the period between the date of issuance of the register and the date of the election. Like other existing legislations²⁸, the Federal Electoral Code should impose an obligation to destroy the copies received by the date of the elections.

Security

32. Data controllers must ensure the security and confidentiality of the information they hold, meaning they must ensure the implementation of appropriate technical and organizational measures. Among these techniques, it is advisable to secure the lists used for electoral propaganda and to store them on media sufficiently protected against intrusion attempts. As much as possible, two-factor authentication should be used if available, and passwords should be complex. Data controllers must also clearly establish who has access to the data.

33. Existing legislations should also provide for the logging of communications and the adoption of fingerprinting measures at the level of files communicated electronically. Fingerprinting is an identification technology based on the insertion of a digital watermark dependent on the name of the recipient into an image, file, or video, in order to trace their origin or source to detect the source of any copies. Thus, non-compliant uses of the legal framework can be easily detected and sanctioned.

34. Furthermore, in order to ensure the effectiveness of the prohibition for candidates to transmit the copies received to third parties, the Authority reminds that it favors data exchanges electronically via a secure platform and not on paper²⁹.

Deletion of certain data in the absence of duly justified justification

35. It is necessary to delete from the electoral lists all data for which processing within the framework of the electoral lists would not be duly justified for electoral publicity purposes, as explained below (see point VI.).

28 Article 13, §3 of the Ordinance on the New Brussels Electoral Code states that “Persons holding a list of voters may only use it for electoral purposes, and only during the period between the date of availability of the list and the date of the election.” “All persons holding a copy of the list of voters must destroy this copy no later than the day after the election for which the list of voters was established.” Articles L4122-7, §4 and L4122-8, §4 of the Code of Local Democracy and Decentralization provide that “The copies issued under this article may not be used [...], and only during the period between the date of issuance of the register and the date of the election, under penalty of the sanctions provided for in Article L45162-4.”

Article 16, §4 of the Decree on the Organization of Local and Provincial Elections states that “The list of voters is kept until the election is validated [...].”

29 See in this sense Opinion No. 164/2022 of July 19, 2022, cons. 43 and Opinion No. 209/2022 of September 9, 2022, cons. 42.

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6. Regarding personal data
communicated to political parties and candidates

36. The Authority notes that the various electoral legislations differ regarding the personal data included on the electoral rolls provided to political parties and candidates.

37. For example, according to the Code of Local Democracy and Decentralization concerning municipal and provincial elections (Walloon Region), the data "sex" is included in the copies of the electoral registers provided to political parties and candidates. Conversely, this data is not included in these registers according to the Federal Electoral Code, the New Brussels Municipal Electoral Code, and the Decree on the Organization of Local and Provincial Elections (Flemish Region)³⁰.

38. The Authority wishes to clarify below the cases where the limitation of data from electoral rolls has an objective reason in data protection legislations. The Authority also reminds that no legal provision strictly speaking prevents the selection of recipients of electoral mail based on criteria such as age or address, for example. The Authority does not have a conclusive study on the appropriateness or not of targeting electoral advertising messages; an evaluation must be made for each data that is considered for targeting purposes.

39. The Authority lists below some data, which can be categorized into two distinct groups. First, the data related to date of birth and sex, whose processing for electoral propaganda purposes seems to entail limited risks regarding personal data protection. Secondly, the data related to nationality and

name, which may lead to processing resulting in ethnic profiling and require consideration of Article 9 of the GDPR.

Data "date of birth"

40. Regarding the data "date of birth," it offers political parties and candidates the possibility to limit their correspondence to a portion of voters based on their age category. The selection of voters based on their age allows parties to develop specific communications. In light of the principle of data minimization, the data indicating "date of birth" should be limited to the data "year of birth."

30 Update of the recommendation of December 11, 2023: The removal of the data "sex" from the electoral rolls for Flemish local elections is a recent legislative change. In this regard, see Article 4 of the decree of October 27, 2023, amending the Decree on the Organization of Local and Provincial Elections of July 8, 2011, the decree of May 25, 2012, concerning the organization of digital elections, and the decree of December 22, 2017, on local administration, M.B., December 5, 2023.

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Data "sex"

41. Regarding the data "sex," it is not included in the copies of the electoral lists provided to political parties and candidates according to the Federal Electoral Code, the New Brussels Communal Electoral Code, and the Decree on the organization of local and provincial elections (Flemish Region). These codes are therefore more respectful of the principle of data minimization, unlike the Local Democracy and Decentralization Code (Walloon Region). The Authority acknowledges the omission of this data in the electoral lists. It seems that the debate on the use of gender-related data is situated within a societal context of flattening differences between the sexes, rather than within a debate related to data protection.

Data "nationality"

42. Regarding the data "nationality," it is mentioned in the copies of the electoral lists provided to parties and candidates according to the Local Democracy and Decentralization Code (Walloon Region) and according to the decree on the organization of local and communal elections of July 8, 2011 (Flemish Region). The question arises as to whether the processing of this data reveals the racial or ethnic origin of the individuals concerned and therefore falls within the scope of Article 9 of the GDPR, and whether such data processing is indeed prohibited unless the data controller has obtained the explicit consent of the individuals concerned.

43. Nationality constitutes an objective and administrative data point attesting to a legal relationship between a State and an individual. However, in certain circumstances, nationality can be understood as a constitutive element of ethnic origin. Indeed, it emerges from the interpretations given by the European Court of Human Rights (ECHR) of the concepts of race and ethnic origin that language, religion, nationality, and culture can be inseparable from race. The ECHR has stated:

"Ethnic origin and race are related concepts. While the notion of race is rooted in the idea of a biological classification of human beings into subspecies based on morphological characteristics, such as skin color or facial features, ethnic origin stems from the idea that societal groups are marked notably by a community of nationality, religious faith, language, cultural and traditional origin, and living environment" (emphasized by the Authority).

44. The Court of Justice of the European Union also interprets the notion of ethnic origin as stemming "from the idea that societal groups are marked..."

31 The Authority has already highlighted the link that can be established between nationality and the disclosure of the ethnic or racial origin of the individual concerned. In this sense, see Opinion No. 209/2022 of September 9, 2022, paras. 38 to 46.

32 ECHR, judgment in *Sejdic and Finci v. Bosnia and Herzegovina*, December 22, 2009, para. 43. See also ECHR, judgment in *Timichev v. Russia*, nos. 55762/00 and 55974/00, December 13, 2005, para. 55.

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notably by a community of nationality, religious faith, language, cultural and traditional origin, and living environment" (underlined by the Authority).

45. In light of the above, it can be considered that in certain contexts, the data relating to nationality is likely to directly or indirectly reveal the racial or ethnic origin of the person concerned.

46. In the absence of a prohibition on its processing by nature, the possibility of processing or not processing nationality data for electoral propaganda purposes will depend on the specific data processing carried out. If the processing results in ethnic profiling, the rules of Article 9 of the GDPR will apply. Such processing will be prohibited as it is not proportionate to the risks faced by the populations concerned, and, moreover, since no legal provision regulates such data processing for the purposes of ethnic profiling, and it is not feasible to obtain the consent of all concerned voters. Therefore, the Authority is of the opinion that this data should be omitted from the copies of the voter lists established according to the Code of Local Democracy and Decentralization (Walloon Region) and the decree organizing local and municipal elections of July 8, 2011 (Flemish Region), similar to other applicable legislations.

47. In conclusion, based on the previous developments, in the context of processing this data for electoral propaganda purposes, the Authority is of the opinion that the data relating to the nationality of voters constitutes personal data processing that may reveal the racial and/or ethnic origin of the persons concerned as referred to in Article 9 of the GDPR, and that it should be omitted from the voter register.

48. However, if the legislator decides not to follow the Authority's opinion and continues to transmit this data, it is more appropriate to indicate only whether the voter has or does not have Belgian nationality, thus limiting the processed data to the Belgian/non-Belgian parameter.

****Data "Name"***

49. Regarding the data "name," the Authority agrees with the position of the CNIL, which states that "no legal provision prohibits selecting voters based on certain criteria. However, sorting based on the phonetics of names that may reveal the racial, ethnic, or religious origins, real or presumed, of the persons concerned is prohibited due to the risks of discrimination they entail." Like the CNIL, the Authority recommends not to carry out such sorting. Indeed, any sorting potentially carried out based on the phonetics of the name is likely to reveal the racial, ethnic origins, or religious affiliations. If the processing results in ethnic profiling, the rules of Article 9 of the GDPR will apply. Such processing will be prohibited as it is not proportionate to the risks faced by the populations concerned, and, moreover, since no legal provision regulates such data processing for the purposes of ethnic profiling, and it is not feasible to obtain the consent of all concerned voters. The same reasoning applies regarding the data "nationality," which the Authority recommends to be removed from the lists, preferring the Belgian/non-Belgian data (see para. 48 of this recommendation). However, to the extent that the issuance of copies of the electoral lists is permitted, the Authority is aware that removing names from these lists would pose operational problems.

50. The Authority refers to the duties of data controllers who are responsible for refraining from carrying out disproportionate data processing.

51. In conclusion, the Authority considers that in the absence of clarifications in the legislations organizing the communication of electoral lists for targeted electoral propaganda by mail, it is the responsibility of the data controllers of these lists to ensure that appropriate safeguards are implemented. They will be required to demonstrate their best efforts in this regard.

For the Knowledge Center,
Cédrine Morlière, Director

35 See in this regard the CNIL article on electoral lists, November 27, 2019, available at <https://www.cnil.fr/fr/la-liste-electorale>